

COMMITTEE ON HEALTH AND HUMAN SERVICES
SENATE AMENDMENTS TO H.B. 2082
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 36-121, Arizona Revised Statutes, is amended to
3 read:

4 36-121. Childhood cancer and rare childhood disease research
5 fund

6 A. The childhood cancer and rare childhood disease research fund is
7 established consisting of monies received pursuant to section 28-2442,
8 LEGISLATIVE APPROPRIATIONS, GIFTS, DONATIONS AND FEDERAL GRANTS. The
9 director shall administer the fund. Not more than ten ~~per cent~~ PERCENT of
10 monies deposited in the fund annually shall be used for the cost of
11 administering the fund. The first ~~thirty-two thousand dollars~~ \$32,000
12 received PURSUANT TO SECTION 28-2442 shall be reimbursed to the person or
13 entity that paid the implementation fee. Monies in the fund are
14 continuously appropriated. The director shall annually distribute monies
15 in the fund.

16 B. [SUBJECT TO LEGISLATIVE APPROPRIATION OR THE AWARD OF FEDERAL
17 GRANTS, OR A COMBINATION OF APPROPRIATIONS AND GRANTS, IN AN AMOUNT OF AT
18 LEAST \$5,000,000 FOR THE PURPOSES OF CHILDHOOD CANCER AND RARE CHILDHOOD
19 DISEASE RESEARCH.] the director shall allocate monies from the fund ~~to~~
20 ~~health care providers and research institutions that are located in this~~
21 ~~state, that are nonprofit organizations and that are engaged in phase I~~
22 ~~clinical trials relating to research on pediatric cancer or other rare~~
23 ~~pediatric diseases. The monies may be used in a collaborative study or~~
24 ~~research program with other facilities outside of this state. Nonprofit~~
25 ~~organizations receiving monies from the fund shall use the monies for the~~
26 ~~purposes prescribed in this subsection even if the monies are aggregated~~
27 ~~with other monies~~ FOR THE GRANTS AWARDED BY THE CHILDHOOD CANCER AND RARE
28 CHILDHOOD DISEASE RESEARCH COMMISSION ESTABLISHED BY SECTION 36-121.01.

1 [UNLESS OTHERWISE SPECIFIED BY THE FEDERAL GRANT CONTRACT, THE DIRECTOR
2 MAY USE UP TO FOUR PERCENT OF THE AMOUNT APPROPRIATED OR GRANTED TO COVER
3 ADMINISTRATIVE COSTS.]

4 C. IF THE DEPARTMENT DOES NOT RECEIVE ADDITIONAL LEGISLATIVE
5 APPROPRIATIONS OR FEDERAL GRANTS, OR A COMBINATION OF APPROPRIATIONS AND
6 GRANTS, FOR THE PURPOSES OF CHILDHOOD CANCER AND RARE CHILDHOOD DISEASE
7 RESEARCH IN AN AMOUNT OF AT LEAST \$5,000,000, THE DIRECTOR SHALL ALLOCATE
8 MONIES RECEIVED PURSUANT TO SECTION 28-2442 TO HEALTH CARE PROVIDERS AND
9 RESEARCH INSTITUTIONS THAT ARE LOCATED IN THIS STATE, THAT ARE NONPROFIT
10 ORGANIZATIONS AND THAT ARE ENGAGED IN CLINICAL TRIALS RELATING TO RESEARCH
11 ON PEDIATRIC CANCER OR OTHER RARE PEDIATRIC DISEASES. THE MONIES MAY BE
12 USED IN A COLLABORATIVE STUDY OR RESEARCH PROGRAM WITH OTHER FACILITIES
13 OUTSIDE OF THIS STATE. NONPROFIT ORGANIZATIONS THAT RECEIVE MONIES FROM
14 THE CHILDHOOD CANCER AND RARE DISEASE RESEARCH FUND SHALL USE THE MONIES
15 FOR THE PURPOSES PRESCRIBED IN THIS SUBSECTION EVEN IF THE MONIES ARE
16 AGGREGATED WITH OTHER MONIES.]

17 ~~C.~~ [D.] Monies in the fund are exempt from the provisions of
18 section 35-190 relating to lapsing of appropriations.

19 Sec. 2. Title 36, chapter 1, article 1, Arizona Revised Statutes,
20 is amended by adding section 36-121.01, to read:

21 36-121.01. Childhood cancer and rare childhood disease
22 research commission; membership; reimbursement;
23 conflict of interest; annual report

24 A. [SUBJECT TO THE CONDITIONS SPECIFIED IN SECTION 36-121,
25 SUBSECTION B.] THE CHILDHOOD CANCER AND RARE CHILDHOOD DISEASE RESEARCH
26 COMMISSION IS ESTABLISHED CONSISTING OF AT LEAST THE FOLLOWING MEMBERS WHO
27 ARE APPOINTED BY THE DIRECTOR:

28 1. ONE MEMBER WHO IS A SURVIVOR OF CHILDHOOD CANCER OR A CAREGIVER
29 TO INDIVIDUALS WHO HAVE CHILDHOOD CANCER.

30 2. ONE MEMBER WHO IS A SURVIVOR OF A RARE CHILDHOOD DISEASE OR A
31 CAREGIVER TO INDIVIDUALS WHO HAVE RARE CHILDHOOD DISEASES.

32 3. FOUR HEALTH PROFESSIONALS WHO PRACTICE IN THE FIELD OF EITHER
33 PEDIATRIC CANCER OR RARE CHILDHOOD DISEASES.

34 4. ONE MEMBER WHO REPRESENTS A NATIONWIDE PEDIATRIC CANCER ADVOCACY
35 NONPROFIT ORGANIZATION.

36 B. COMMISSION MEMBERS SHALL SERVE FIVE-YEAR TERMS AND SHALL
37 ANNUALLY ELECT A CHAIRPERSON FROM THE MEMBERSHIP. COMMISSION MEMBERS ARE
38 NOT ELIGIBLE TO RECEIVE COMPENSATION BUT ARE ELIGIBLE FOR REIMBURSEMENT OF
39 EXPENSES PURSUANT TO TITLE 38, CHAPTER 4, ARTICLE 2.

40 C. THE COMMISSION SHALL[;

41 1. ESTABLISH CRITERIA FOR THE CLINICAL TRIALS THAT QUALIFY TO
42 RECEIVE RESEARCH GRANTS.]

43 2. OVERSEE THE APPLICATION PROCESS AND REVIEW APPLICATIONS FOR THE
44 CLINICAL TRIAL RESEARCH GRANTS TO ASSIST THE DIRECTOR IN SELECTING THE
45 MOST CREDIBLE CLINICAL TRIALS TO WHICH TO AWARD THE RESEARCH GRANTS.]

46 3. ENSURE THAT ALL COMMISSION MEETINGS ARE OPEN TO THE PUBLIC AND
47 ALLOW FOR PUBLIC TESTIMONY.]

1 D. THE DIRECTOR SHALL AWARD GRANTS TO HEALTH CARE PROVIDERS AND
2 RESEARCH INSTITUTIONS THAT ARE LOCATED IN THIS STATE, THAT ARE NONPROFIT
3 ORGANIZATIONS AND THAT ARE ENGAGED IN CLINICAL TRIALS RELATING TO RESEARCH
4 ON PEDIATRIC CANCER OR OTHER RARE PEDIATRIC DISEASES. THE MONIES AWARDED
5 MAY BE USED IN A COLLABORATIVE STUDY OR RESEARCH PROGRAM WITH OTHER
6 FACILITIES OUTSIDE OF THIS STATE. NONPROFIT ORGANIZATIONS THAT RECEIVE
7 MONIES FROM THE [CHILDHOOD CANCER AND RARE DISEASE RESEARCH] FUND
8 [ESTABLISHED BY SECTION 36-121] SHALL USE THE MONIES FOR THE PURPOSES
9 PRESCRIBED IN THIS SUBSECTION EVEN IF THE MONIES ARE AGGREGATED WITH OTHER
10 MONIES.

11 D. COMMISSION MEMBERS SHALL RECUSE THEMSELVES FROM DISCUSSING AND
12 VOTING ON ANY MATTER IN WHICH THEY HAVE A CONFLICT OF INTEREST. IF AT ANY
13 TIME COMMISSION MEMBER RECUSALS DUE TO CONFLICTS OF INTEREST CAUSE THE
14 COMMISSION TO NO LONGER HAVE A QUORUM TO TAKE OFFICIAL ACTION, THE
15 DIRECTOR OR THE DIRECTOR'S DESIGNEE AND OTHER DEPARTMENT STAFF MEMBERS
16 APPOINTED BY THE DIRECTOR MAY ACT AS MEMBERS OF THE COMMISSION ON ANY
17 GRANT APPLICATION AT ISSUE.

18 E. NOT LATER THAN AUGUST 1, 2027 AND AUGUST 1 OF EACH YEAR THEREAFTER,
19 THE COMMISSION SHALL SUBMIT A REPORT TO THE APPROPRIATIONS COMMITTEES AND
20 HEALTH AND HUMAN SERVICE COMMITTEES OF THE SENATE AND THE HOUSE OF
21 REPRESENTATIVES, OR THEIR SUCCESSOR COMMITTEES, DETAILING THE NUMBER,
22 AMOUNTS AND RECIPIENTS OF THE GRANTS AWARDED PURSUANT TO THIS SECTION, THE
23 RESULTING RESEARCH~~[, THE RETURN ON INVESTMENT]~~ AND ANY OTHER RELEVANT
24 INFORMATION.

25 Enroll and engross to conform

26 Amend title to conform

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03/10/2026

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C: MH

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